

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAIANA CHERHYNETS,

Petitioner

VS.

FAROOQ IMAM,

Respondent

) Case Number: FDI-22-796786

) Hearing Date: June 2, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY AND VISITATION BY
RESPONDENT, FAROOQ IMAM CHANGE OF CHILD CUSTODY, VISITATION (PARENTING
TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties to this action are Petitioner Daiana Cherhynets (Mother) and Respondent Farooq Imam (Father). They share one minor child: David Imam (DOB: 09/20/15).
- 2) On March 5, 2026, Father filed a Request for Order seeking modification of the custody and visitation orders. Father seeks joint legal and joint physical custody orders with visitation on a week on/week off basis. The existing orders are from December 16, 2025, and provide for joint legal and joint physical custody. Father's timeshare is on Tuesdays and Thursdays from 3-7 and every other week from Friday at 3:00 p.m. – Tuesday at 7:00 p.m.
- 3) On April 17, 2026, Mother filed a Responsive Declaration in which she requests that the Court:
 - a. Maintain the current parenting plan, pending completion of full child custody evaluation;
and
 - b. Admonish Father again about actively lobbying child about court/custody matters.

4) On April 20, 2026, the Court held a Readiness hearing, and the matter was set for Family Court Services (FCS) Mediation on May 14, 2026 and return hearing on June 2, 2026.

5) On May 19, 2026, Father filed Supplemental Declaration in Response to Petitioner's filed Declaration in which he requests Family Code section 271 sanctions against counsel for alleged lack of cooperation and undermining proceedings. This declaration has been read and considered by the Court.

B. Findings and Order

1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) The Court confirms its prior order that both parents share joint legal and joint physical custody.

3) Father's request for a modification of the existing parenting plan is GRANTED.

4) Effective immediately, the parties shall exercise a week on/week off parenting plan.

5) Exchanges shall occur on Sundays at 5:00 p.m. The receiving parent shall pick up the minor child for his/her parenting time from the other parent.

6) Father's first week shall commence on Sunday, June 7, 2026 at 5:00 p.m.

7) Mother's request that the Court order an Evidence Code section 730 child custody evaluation is DENIED.

8) All prior orders, not in conflict with the orders herein, shall remain in full force and effect.

9) Counsel for Mother shall prepare the Findings and Order After Hearing.

10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).